

24VECV01777 24VECV01777

County: los-angeles

Division: Civil Law and Motion

Department: 107

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Case Number: 24VECV01777 Hearing Date: August 10, 2026 Dept: 107

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Discount

Pool Mart, Inc.,

Plaintiff.

v.

FCA

US LLC, et al.

Defendants.

Case Number Department

24VECV01777 107

COURT'S [TENTATIVE]
ORDER RE:

Motion

for Attorneys' Fees

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

(1) Grant request for fees in the reduced sum of \$30,890.00; (2) Grant request for costs in the sum of \$4,232.60.

I.

BACKGROUND

On

or about May 3, 2022, Plaintiffs Discount Pool Mart, Inc. and Samvel Zograbian (“Plaintiffs”) purchased a RAM Promaster (the “Vehicle”). (Complaint ¶¶ 1-3, 7.) The Vehicle was defective. (Complaint ¶ 10.)

On

April 18, 2024, Plaintiffs filed a complaint against Defendants FCA US LLC, FAB4 LLC, and Does 1 through 30, alleging causes of action for: (1) fraud and deceit; (2) breach of written warranty pursuant to the Magnuson-Moss Warranty Act; (3) breach of implied warranty pursuant to the Magnuson-Moss Warranty Act; (4) breach of written warranty pursuant to the Song-Beverly Consumer Warranty Act; (5) breach of implied warranty pursuant to the Song-Beverly Consumer Warranty Act; (6) violation of Business & Professions Code section 17200, et seq.; (7) violation of Business & Professions Code section 17500, et seq.; (8) negligence; and (9) strict liability.

On December

30, 2025, Plaintiffs filed a notice of settlement of entire case.

On

June 8, 2026, Plaintiffs filed a motion for attorneys’ fees, costs, and expenses (the “Motion”). On July 27, 2026, Defendant FCA US LLC (“Defendant”) filed an opposition. On August 3, 2026, Plaintiffs filed a reply.

II.

LEGAL

STANDARD

California

Civil Code section 1794, subdivision (d) states:

If the buyer

prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

"The plain

wording of the statute requires the trial court to base the fee award upon actual time expended on the case, as long as such fees are reasonably incurred – both from the standpoint of time spent and the amount charged." (Robertson v. Fleetwood Travel Trailers of California, Inc. ("Robertson") (2006) 144 Cal.App.4th 785, 817, original italics.) The "prevailing party has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount." (Id. at pp. 817-818.)

"The amount of an attorney fee to be awarded is a matter within the sound discretion of the trial court." (Id. at p. 822.)

"[T]he lodestar

adjustment method is the prevailing rule for statutory attorney fee awards to be applied in the absence of clear legislative intent to the contrary[.]" (Robertson, supra, 144 Cal.App.4th at p. 818.) The lodestar adjustment method "requires the trial court to first determine a touchstone or lodestar figure based on a careful compilation of the actual time spent and reasonable hourly compensation for each attorney. [Citation] The touchstone figure may then be augmented or diminished by taking various relevant factors into account, including (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award." (Id. at p. 819.) However, a trial court is "not required to apply a multiplier." (Id. at p. 822, original italics.)

III.

DISCUSSION

Plaintiffs

move for an order awarding Plaintiffs attorneys' fees in the sum of \$67,988.00,

reflecting \$67,238.00 in attorneys' fees and assistant fees in the sum of \$750.00. (Memorandum p. 5.) Plaintiff also moves for costs in the sum of \$4,232.60. (Memorandum p. 5.)

Hourly

Rates:

Defendant

argues Plaintiffs' counsels' hourly rates are excessive. (Opposition pp. 3-4.)

Plaintiffs'

counsels billed at rates ranging from \$550.00 per hour to \$750.00 per hour. (Memorandum p. 5.) Plaintiffs' counsels' legal assistant, Elmira Oganyan, billed at the rate of \$150.00 per hour. (Hovanes Margarian Declaration ¶ 55.) Plaintiffs' counsel Hovanes Margarian has "nearly twenty (20) years of litigation experience" and billed at \$650.00 per hour until June 30, 2025, and \$750.00 per hour starting July 1, 2025. (Hovanes Margarian Declaration ¶¶ 12, 16.) Plaintiffs' counsel Akop Jack Ter-Saakyan has "more than sixteen (16) years of experience" and billed at \$700.00 per hour. (Ter-Saakyan Declaration ¶¶ 3, 13.) Plaintiffs' counsel Patrick Kenneth Kimball has "more than sixteen (16) years of litigation experience" and billed at \$700.00 per hour. (Kimball Declaration ¶¶ 10, 13.) Plaintiffs' counsel Armen Margarian has "more than nine (9) years of litigation experience" and billed at \$550.00 per hour until June 30, 2025, and \$670.00 per hour starting July 1, 2025. (Armen Margarian Declaration ¶¶ 12-13.)

The

court understands Plaintiffs' counsels are experienced in this area of the law. However, based on the court's firsthand experience with this matter and Plaintiffs' counsels' work, the court finds the hourly rates charged here exceed what is reasonable.

The

court finds \$150.00 per hour is a reasonable rate for Oganyan, \$600.00 per hour is reasonable for Hovanes Margarian, \$550.00 per hour is reasonable for Ter-Saakyan and Kimball, and \$450.00 per hour is reasonable for Armen Margarian. (See *Goglin v. BMW of North America, LLC* (2016) 4 Cal.App.5th 462, 464, 473-474 [concluding a trial court did not abuse its discretion in finding a \$575 hourly rate was appropriate in a Song-Beverly Consumer Warranty Act action.])

This results in a \$13,008.00
reduction of fees.

Time
Billed:

Plaintiffs'
counsels and counsels' legal assistant billed a total of 108.90 hours on this
matter. (Hovanes Margarian Declaration Ex. A pdf p. 25.)

In
opposition, Defendant argues Plaintiffs' counsels' hours billed are excessive.
(Opposition pp. 4-8.)

The
court agrees with Defendant that some of the tasks billed are excessive. It is appropriate to reduce a fee award because of "a
lack
of efficiency in litigating the case and a lack of clarity in tasks performed."
(See Mikhaeilpoor v. BMW of North America, LLC (2020) 48
Cal.App.5th 240 256 ["Further, counsel's billing entries demonstrate a lack of
efficiency in litigating the case and a lack of clarity in tasks performed.
This evidence supports the trial court's finding that plaintiff's counsel
failed to act efficiently."]) Plaintiffs' counsels are experienced in this area
of the law. Thus, the court will adjust the reflected time to reflect the
court's understanding that the time billed should reflect Plaintiffs' counsels'
expertise in this area of the law.

Date

Task

Hours Requested

Adjusted Hours

Hourly Rate

02/03/24

Prepared the

Retainer Agreement and had it signed by the client.

0.40

0.10

\$600.00

02/10/24

Created the case

itemization file, which included Plaintiff's personal information, the information on the Vehicle and its acquisition, the financial terms of the contract. Made estimated calculations including the estimated refund to date. Itemized the details of each visit to a repair facility by including Plaintiff's concerns, and a detailed description of the work performed on the Vehicle, results of each repair, and conclusions. Summarized the defects found at that time.

1.00

0.50

\$450.00

03/01/24

Conducted a research

of all applicable warranties that were available to the Vehicle. The research included, but was not limited to, the research on FCA US LLC's ("FCA" or "Defendant") a official webpage, the examination of the owner's manual. Conducted research on the defects I found previously. Researched on the recalls and technical service bulletins available for the Vehicle on the NHTSA official webpage.

1.10

0.50

\$450.00

03/05/24

Communicated with
the team regarding the case, strategy, etc.

0.30

0.00

\$450.00

03/28/24

Conducted an
extensive research on the lemon law cases filed in the state of California,
as well as the cases with the same make and model, the class actions, NHTSA
investigations, other applicable online complaints

0.90

0.20

\$450.00

03/29/24

Assessed the case in
order to evaluate the case and to determine viability, litigation scope and
assessment for course of action.

0.70

0.20

\$450.00

04/06/24

Conducted an

inspection of the Vehicle. This inspection specifically included, but was not limited to, the visual inspection, testing of fluids, taking photographic images, videotaping, as well as test driving to see if any warning messages or issues appear on the dashboard of the Vehicle.

2.50

0.00

\$600.00

04/09/24

Discussed the
inspection results and findings with the team.

0.50

0.00

\$450.00

04/09/24

Reassessed the case
following the Vehicle inspection.

0.60

0.00

\$450.00

04/12/24

Communicated with
the Team regarding filing a lawsuit.

0.20

0.00

\$450.00

04/13/24

Research on the parties to the action, namely FCA and Dealership to include them as Defendants in this action.

1.10

0.20

\$450.00

04/14/24

Drafted the complaint for Plaintiff's damages, including but not limited to the summary regarding Plaintiff's visits to Defendant's authorized repair facilities and complaints regarding defects' manifestations and relevant causes of action.

2.60

0.50

\$450.00

04/15/24

Reviewed the Complaint and associated documents.

0.50

0.10

\$600.00

04/17/24

Finalized the Complaint, the CCCS, the CCCS Addendum, the Summons, and the Statement of Damages ("Lawsuit Package").

0.60

0.10

\$450.00

04/19/24

Checked the status of filing of the Lawsuit Package.

0.10

0.00

\$450.00

04/25/24

Communicated with the person in charge of service of the Lawsuit to Defendant.

0.20

0.00

\$450.00

04/26/24

Communication with the team regarding case status, strategy, etc.

0.20

0.00

\$450.00

05/09/24

Prepared the Proof
of Service of Summons separately for FCA, had it signed by the person who
served the lawsuit package.

0.40

0.10

\$450.00

05/09/24

Reviewed the Proof
of Service of Summons separately for Dealership.

0.40

0.10

\$450.00

05/14/24

Sent repair orders
and other files related to the case to the Retained Expert to prepare for the
vehicle inspection.

0.50

0.20

\$450.00

05/23/24

Reassessed the case
following the Vehicle Inspection.

0.90

0.00

\$450.00

05/30/24

Reviewed FCA's
Answer to Complaint. Analyzed each affirmative defense (29 in total)
thoroughly to understand their applicability and extent.

1.20

0.40

\$450.00

05/31/24

Reviewed
Dealership's Answer to Complaint. Analyzed each affirmative defense (29 in
total) thoroughly to understand their applicability and extent.

0.90

0.40

\$450.00

06/18/24

Drafted 24-pages
long 139 specially prepared interrogatories and declaration for additional
discovery. Elaborated interrogatories related to each defect and complaint

alleged by Plaintiff, as well as interrogatories regarding the recalls, technical service bulletins, and other related questions. All pages have been edited to make sure everything is code-compliant and accurate in technical terms.

1.90

1.00

\$450.00

06/22/24

Drafted 18-pages

long 104 requests for admission and declaration for additional discovery. Elaborated requests related to each defect and complaint alleged by Plaintiff, as well as requests regarding the recalls, technical service bulletins, the nonconformities, and other related questions. All pages have been edited to make sure everything is code compliant and accurate in technical terms.

2.30

1.00

\$450.00

06/23/24

Finalized the discovery requests to FCA, all set one. Prepared for the service.

0.70

0.20

\$450.00

06/27/24

Drafted 14-pages

long 66 specially prepared interrogatories and declaration for additional discovery. Elaborated interrogatories related to each defect and complaint alleged by Plaintiff, as well as interrogatories regarding the recalls, technical service bulletins, and other related questions. All pages have been edited to make sure everything is code compliant and accurate in technical terms.

0.90

0.50

\$450.00

06/28/24

Drafted 9-pages long

25 requests for production of documents. Requested documents for inspection related to each defect, nonconformity, and complaint alleged by Plaintiff, as well as documents in connection with the sale of the Vehicle, recalls, bulletins, and other related documents. All pages have been edited to make sure everything is code-compliant and accurate in technical terms.

0.70

0.50

\$450.00

06/29/24

Drafted 13-pages

long 60 requests for admission and declaration for additional discovery. Elaborated requests related to each defect and complaint alleged by Plaintiff, as well as requests regarding the recalls, technical service bulletins, the nonconformities, and other related questions. All pages have been edited to make sure everything is code compliant and accurate in technical terms.

1.20

0.50

\$450.00

06/30/24

Drafted 14

pages-long Notice of Taking Deposition of Person(s) Most Knowledgeable ("PMK") at FCA, and Requests for Production of Documents, including the 12 categories of the person(s) requested to appear at the deposition. Edited and made sure everything is code compliant and accurate in technical terms. Drafted a proof of service. Finalized the document. Calendared the deposition and deadlines.

0.70

0.40

\$450.00

06/30/24

Reviewed the

discovery requests to Dealership, all Set 1.

0.50

0.30

\$600.00

07/03/24

Finalized the

discovery requests to Dealership, all set one. Prepared for the service.

0.50

0.10

\$450.00

08/20/24

Communicated with
and sent case-related information to appearance attorney for the upcoming
CMC.

0.40

0.20

\$450.00

08/21/24

Received and
reviewed appearance attorney's notes regarding the CMC hearing.

0.20

0.10

\$450.00

10/09/24

Reviewed FCA's 80
pages long responses to Plaintiff's specially prepared interrogatories to
FCA, Set 1.

1.90

1.00

\$550.00

10/10/24

Continued reviewing

FCA's 80 pages long responses to Plaintiff's specially prepared interrogatories to FCA, Set 1

2.10

1.00

\$550.00

10/12/24

Reviewed FCA's 36

pages long responses to Plaintiff's requests for admission to FCA, Set 1.

2.20

1.00

\$550.00

10/13/24

Reviewed FCA's 29

pages long responses to Plaintiff's form interrogatories to FCA, Set 1.

1.80

1.00

\$550.00

10/14/24

Reviewed FCA's 20

pages long responses to Plaintiff's requests for production of documents to FCA, Set 1.

1.30

1.00

\$550.00

07/06/24

Drafted 16-pages

long 85 requests for admission and declaration for additional discovery, along with exhibits. Elaborated requests related to the release agreement. All pages have been edited to make sure everything is code compliant and accurate in technical terms.

2.40

1.00

\$550.00

11/01/25

Reviewed the case

file. Prepared Plaintiff's notice of motion and motion for an order deeming the truth of matters admitted in Plaintiff's requests for admission, set 2, and request for order to impose monetary sanction against Defendant and Defendant's counsel; memorandum of points in support thereof; proposed order ("Motion to Deem Truth of Matters")

1.60

1.00

\$550.00

11/02/25

Continued preparing
the Motion to Deem Truth of Matters.

2.40

0.00

\$550.00

11/03/25

Prepared a
declaration in support of Motion to Deem Truth of Matters.

0.60

0.30

\$550.00

11/04/25

Reviewed Motion to
Deem Truth of Matters; prepared a declaration in support thereof.

0.60

0.30

\$600.00

11/23/25

Prepared 17-pages
long 93 specially prepared interrogatories, and declaration for additional
discovery. All pages have been edited to make sure everything is code
compliant and accurate in technical terms.

1.20

1.00

\$550.00

11/25/25

Prepared 8-pages

long 30 requests for production of documents. All pages have been edited to make sure everything is code-compliant and accurate in technical terms.

0.60

0.30

\$550.00

11/26/25

Prepared 10-pages

long 30 requests for admission, and declaration for additional discovery. All pages have been edited to make sure everything is code-compliant and accurate in technical terms.

0.70

0.30

\$550.00

12/04/25

Prepared 17-pages

long 90 specially prepared interrogatories, and declaration for additional discovery. All pages have been edited to make sure everything is code compliant and accurate in technical terms.

1.10

1.00

\$550.00

12/04/25

Prepared 8-pages

long 29 requests for production of documents. All pages have been edited to make sure everything is code-compliant and accurate in technical terms.

0.60

0.30

\$550.00

12/04/25

Prepared 10-pages

long 29 requests for admission, and declaration for additional discovery. All pages have been edited to make sure everything is code-compliant and accurate in technical terms.

0.70

0.30

\$550.00

01/16/26

Received

Dealership's Responses to Plaintiff's Discovery Requests to Dealership, Set 2.

0.10

0.00

\$550.00

02/04/25

Reviewed the case

file. Calculated the attorneys' fees and costs.

2.20

0.00

\$550.00

02/27/26

Communicated with
and sent case-related information to appearance attorney for the upcoming
Order to Show Cause.

0.30

0.10

\$550.00

03/03/26

Received and read
Minute Order re: Order to Show Cause filed by the Clerk.

0.20

0.10

\$550.00

03/10/26

In debth review of
the case file, documents, time entries made on the matter, communications
documented on the matter, etc. Preparation of the Breakdown of Expended
Hours.

1.90

0.20

\$550.00

03/10/26

In depth review of
the case file, documents, time entries made on the matter, communications
documented on the matter, etc. Preparation of the Breakdown of Expended
Hours.

0.80

0.20

\$550.00

03/11/26

In depth review of
the case file, documents, time entries made on the matter, communications
documented on the matter, etc. Preparation of the Breakdown of Expended
Hours.

1.40

0.20

\$450.00

03/11/26

In depth review of
the case file, documents, time entries made on the matter, communications
documented on the matter, etc. Preparation of the Breakdown of Expended
Hours.

1.00

0.20

\$600.00

06/23/24

Proofread

Plaintiff's Discovery Requests to FCA, Set 1.

1.10

0.20

\$150.00

07/07/25

Proofread

Plaintiff's Discovery Requests to FCA, Set 2.

0.60

0.20

\$150.00

12/04/25

Proofread

Plaintiff's Discovery Requests to Dealership, Set 2.

0.80

0.20

\$150.00

06/05/25

Prepared Plaintiffs'

Notice of Motion and Motion for Attorneys' Fees, Costs and Expenses;

Memorandum of Points and Authorities; and Memorandum of Costs ("Motion Package").

2.50

0.60

\$550.00

06/08/25

Prepared a
declaration in support of the Motion.

0.50

0.10

\$550.00

06/08/25

Prepared a
declaration in support of the Motion.

0.50

0.10

\$550.00

06/08/25

Prepared a
declaration in support of the Motion.

0.50

0.10

\$600.00

06/08/25

Prepared a
declaration in support of the Motion.

0.50

0.10

\$450.00

06/08/25

Reviewed the
Breakdown of Expended Hours. Reviewed the Motion Package prior to signing.

0.50

0.10

\$600.00

-

Draft of Plaintiffs'
Reply in Support of Plaintiff's Motion ("Reply Package").
(Estimation)

3.50

1.00

\$600.00

-

Review of the Reply
Package. (Estimation)

0.40

0.00

\$600.00

-

2.5 hours is

estimated to be spent by Hovanes Margarian on preparation and appearance at the Hearing on Motion for Attorney Fees, including the review of fee motion related documents.

2.50

1.00

\$600.00

(Hovanes
Margarian Declaration Ex. A pdf pp. 15-25.)

The
adjustments above reflect a \$24,090.00 reduction in the requested fees.

The
court finds the reasonable number of hours expended on this matter was 61.20
hours, at the hourly rates identified above.

Lodestar

Multiplier:

Plaintiffs
request an unspecified lodestar multiplier. (Memorandum pp. 16-18.)

The court understands
that litigating Song-Beverly actions requires technical expertise. But “a
trial court should award a multiplier for exceptional representation only when
the quality of representation far exceeds the quality of representation that
would have been provided by an attorney of comparable skill and experience
billing at the hourly rate used in the lodestar calculation. Otherwise, the fee
award will result in unfair double counting and be unreasonable.” (Ketchum

v. Moses (2001) 24 Cal.4th 1122, 1139.)

Here, Plaintiffs' counsels displayed the skill, proficiency, and technical expertise commensurate with counsels' experience and specialty. Nothing before the court indicates Plaintiffs' counsels' representation exceeded that which would have been provided by other attorneys of comparable skill and experience billing at counsels' rates.

Accordingly, the court denies Plaintiffs' request for an enhancement.

Defendant requests the court apply a negative multiplier because there was nothing novel or difficult about this matter and Plaintiffs' counsels billed an unreasonable number of hours. (Opposition pp. 8-10.)

The court addressed Plaintiffs' counsels' excessive time above. The court denies Defendant's request for a negative multiplier.

Costs:

Plaintiffs request \$4,232.60 in costs. (Memorandum p. 5.)

In opposition, Defendant does not challenge the requested costs.

Plaintiffs' request for costs is granted in the requested sum of \$4,232.60.

IV.

CONCLUSION

For the foregoing reasons, the request for attorneys' fees is granted in the reduced sum of \$30,890.00, to be paid by Defendant to Plaintiffs' counsel within thirty (30) days of this order. The request for costs is granted in the sum of \$4,232.60, to be paid by Defendant to Plaintiffs' counsel within thirty (30) days of this order.

Dated: August 10, 2026 _____ Hon. Eric Harmon

Judge
of the Superior Court